UPSC EPFO · INDUSTRIAL RELATIONS, LABOUR CODES AND SOCIAL SECURITY IN INDIA

OSH Code, 2020

One topic, written from the law as it stands today. Each rule names the Code section that applies now, and what the old Act said where it changed.

How to read these notes

OSH Code s.25(1)	The law today. The Occupational Safety, Health and Working Conditions Code 2020 is in force from 21 November 2025.
OSH Central Rules r.64(1)	A rule in the OSH (Central) Rules 2026, in force from 8 May 2026. The Code itself leaves the point to the Rules.
OLD Factories Act 1948 s.51	An old Act, now repealed. Shown only to compare.
NEEDS RULES	The section works through rules or a Government notification.
SAME CHANGED NEW REMOVED	How the Code compares with the old law.

OSH Code s.x **Rule card**

One rule of law. The section is always at the top.

OLD Old Act s.y what it said before SAME

Contents

1. The Code at a glance
2. Definitions and who is covered
3. Registration, licence and returns
4. Hours, overtime and leave
5. Women, health check-up and age
6. Welfare, safety and hazardous work
7. Contract labour (Chapter XI, Part I)
8. Inter-State migrant workers (Chapter XI, Part II)
9. Mines and plantations (bridge)
10. Penalties and compounding

What changed

Numbers on one scale

Quick revision

Test yourself

Thirteen Acts on factories, mines, plantations, contract labour, migrant workers, construction, docks and other workplaces became one Code on occupational safety, health and working conditions. This topic teaches the Code first: who is covered, registration, hours and leave, welfare and safety, contract labour, migrant workers and penalties. The old Acts appear only to show what changed.

LAW TODAY

The Occupational Safety, Health and Working Conditions Code, 2020 OSH Code (Act 37 of 2020) is in force in full from 21 November 2025 (S.O. 5321(E)). It repealed 13 Acts OSH Code s.143(1). The Central Government may fix different dates for different provisions OSH Code s.1(2), but the notification fixes one date for the whole Code. The Occupational Safety, Health and Working Conditions (Central) Rules, 2026 (G.S.R. 345(E), 8 May 2026) are in force from the date they were published in the Gazette OSH Central Rules r.1(3). A point marked with a Rules chip comes from the Rules, not the Code text.

1. **13 Acts, 1 Code.** The Code has **143** sections and **14** chapters. It was assented to on 28 September 2020 and is in force in full from 21 November 2025.

2. **Who is covered.** An establishment with **10 or more** workers OSH Code s.2(1)(v). A factory with **20 or more** workers with power, **40 or more** without OSH Code s.2(1)(w). Contract labour: **50 or more** OSH Code s.45(1)(i). Inter-State migrant workers: **10 or more** OSH Code s.59. Mines and docks have no worker threshold.

3. **Hours and leave. 8 hours** a day OSH Code s.25(1)(a). The **48-hour** week is in the Rules OSH Central Rules r.64(1), not in the Code. Overtime at **2 times** wages, with the worker's consent OSH Code s.27. Leave with wages after **180 days** worked, 1 day for every **20** days OSH Code s.32(1).

4. **Welfare and safety.** Canteen at **100 or more** workers OSH Code s.24(1)(v). Crèche at **more than 50** workers OSH Code s.24(3). Welfare officer at **250 or more** OSH Code s.24(2)(iv). Ambulance room at **more than 500** OSH Code s.24(2)(i). Safety Committee at **500 or more** in the Rules OSH Central Rules r.14(1); the Code gives no number OSH Code s.22(1).

5. **Contract labour and penalties.** Contract labour in core activities is barred, with 3 exceptions OSH Code s.57(1). A death caused by a contravention: imprisonment up to **2 years**, or a fine of **not less than Rs 5 lakh**, or both OSH Code s.103(1)(a). Compounding: **50%** of the maximum penalty, **75%** of the maximum fine OSH Code s.114(1).

1. The Code at a glance

Point	Rule
Act	Act 37 of 2020. Presidential assent on 28 September 2020.
Acts merged	**13** enactments listed in OSH Code s.143(1).
Size	**143** sections. OSH Code s.143 is the last operative section, "Repeal and Savings".
Chapters	**14**, I to XIV.
Commencement	S.O. 5321(E), 21 November 2025, for the whole Code.
Rules	Central Rules 2026, G.S.R. 345(E), 8 May 2026.

Key dates

> **28 Sep 2020** Presidential assent.
>
> **21 Nov 2025** S.O. 5321(E): the whole Code is in force. The 13 old Acts stand repealed.
>
> **8 May 2026** Central Rules 2026, G.S.R. 345(E), in force on publication.

Chapter map

Chapter	Title
I	Preliminary
II	Registration
III	Duties of Employer and Employees, etc.
IV	Occupational Safety and Health
V	Health, Safety and Working Conditions
VI	Welfare Provisions
VII	Hours of Work and Annual Leave with Wages
VIII	Maintenance of Registers, Records and Returns
IX	Inspector-cum-Facilitators and Other Authority
X	Special Provision relating to Employment of Women

Chapter	Title
XI	Special Provisions for Contract Labour and Inter-State Migrant Worker, etc. Its parts include Part I (Contract Labour), Part II (Inter-State Migrant Workers) and Part III (Audio-Visual Workers).
XII	Offences and Penalties
XIII	Social Security Fund
XIV	Miscellaneous

The 13 repealed Acts

OSH Code s.143(1) repeals these Acts.

Item	Act
(a)	Factories Act 1948
(b)	Plantations Labour Act 1951
(c)	Mines Act 1952
(d), (e)	Working Journalists and other Newspaper Employees (Conditions of Service) and Miscellaneous Provisions Act 1955; Working Journalists (Fixation of Rates of Wages) Act 1958
(f)	Motor Transport Workers Act 1961
(g)	Beedi and Cigar Workers (Conditions of Employment) Act 1966
(h)	Contract Labour (Regulation and Abolition) Act 1970
(i)	Sales Promotion Employees (Conditions of Service) Act 1976
(j)	Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act 1979
(k)	Cine-Workers and Cinema Theatre Workers (Regulation of Employment) Act 1981
(l)	Dock Workers (Safety, Health and Welfare) Act 1986
(m)	Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act 1996

The Child and Adolescent Labour (Prohibition and Regulation) Act 1986 is not in this list, so the Code does not repeal it.

2. Definitions and who is covered

For the wages definitions shared by all the Codes, see Topic 7, Code on Wages. The OSH Code's own wording is below.

OSH Code s.2(1)(v) Establishment

A place where an industry, trade, business, manufacturing or occupation is carried on and **10 or more** workers are employed.

A motor transport undertaking, newspaper establishment, audio-video production, building or other construction work, or plantation, also needs **10 or more** workers.

A mine, or a port or its vicinity where dock work is carried out, has **no worker threshold**.

The 10-worker threshold does not apply to an establishment where a hazardous or life threatening activity, notified by the Central Government, is carried on.

OSH Code s.2(1)(w) Factory

Premises with **20 or more** workers (now, or on any day of the preceding 12 months) where a manufacturing process is carried on **with power**. With **40 or more** workers where it is carried on **without power**.

If a State law fixed a different number before the Code, that number prevails in the State until the State Legislature amends it.

OLD Factories Act 1948 s.2(m) 10 or more workers with power, 20 or more without CHANGED

OSH Code s.2(1)(zx) Plantation

Land used for growing tea, coffee, rubber, cinchona or cardamom that measures **5 hectares or more**. Other plants can be added by State notification.

OSH Code s.2(1)(zs) Occupier

The person with ultimate control over the affairs of the factory. For a company, any one of the directors other than an independent director. For a firm, one of the partners.

OSH Code s.2(1)(zzl) Worker

Anyone employed in an establishment for manual, unskilled, skilled, technical, operational, clerical or supervisory work for hire or reward.

Excluded: a supervisor drawing wage above **Rs 18,000** a month (or a notified amount), armed forces, police and prison staff, and managerial or administrative staff. The definition has no out-worker exclusion.

OLD CLRA 1970 the definition of "workman" excluded an out-worker REMOVED

OSH Code s.2(1)(t) **Employee**

A person (other than an apprentice under the Apprentices Act 1961) employed on wages for skilled, semi-skilled, unskilled, manual, operational, supervisory, managerial, administrative, technical, clerical or other work. It excludes members of the Armed Forces of the Union.

"Employee" is wider than "worker" because it takes in managerial and administrative staff.

OSH Code s.2(1)(ze) **Inspector-cum-Facilitator**

The officer appointed under OSH Code s.34(1). The appropriate Government may appoint Inspector-cum-Facilitators by notification.

TRAP

The factory test is not the same in the two Acts. The old Act said 10 with power and 20 without. The Code says **20** with power and **40** without. The contract labour test also moved, from 20 to **50**.

3. Registration, licence and returns

OSH Code ss.3(1), 3(3) **Registration**

An employer of an establishment that comes into existence after the Code starts, and to which the Code applies, applies **electronically** to the registering officer within **60 days** of applicability. The certificate of registration is issued electronically.

OSH Code s.3(8) **Existing registrations**

An establishment already registered under a Central labour law is deemed registered under the Code if the holder gives the details to the registering officer in the prescribed time and form.

OSH Code s.119(1) **Common licence**

One may apply for a common licence for a factory, industrial premises for beedi and cigar work and engaging contract workers, or any combination of them, or a single licence for any one of them. The common licence is **optional**.

OSH Code ss.47, 48(3) **Contractor licence**

A contractor who wants a licence for more than one State or the whole of India may obtain it from the authority designated by the Central Government. The licence is valid for **5 years** for the number of contract labour named in it.

OSH Code s.6(1)(f) **Appointment letter**

The employer issues a letter of appointment to every employee on appointment. An employee who has none when the Code starts gets one within **3 months** of commencement.

Rules. No employee is employed unless an appointment letter in the prescribed format is issued OSH Central Rules r.6. The format has items for type of employment, wages (basic pay and dearness allowance), applicability of social security (EPFO and ESIC) and the broad nature of duties.

OSH Code s.37 **Third party audit**

The appropriate Government may notify a scheme to empanel experts for third party audit and certification for start-up establishments or classes it specifies. Experts are assigned in a randomised manner through a web-based scheme.

OSH Code s.33(d) **Return**

The employer files a return, electronically or otherwise, with the Inspector-cum-Facilitator, in the manner and during the periods the appropriate Government prescribes.

Rules. Every employer sends an annual return in FORM-XVII to the Inspector-cum-Facilitator, electronically, to reach on or before the **last day of February** after each calendar year OSH Central Rules r.74. A return in FORM-XVII and XVIII is uploaded on or before the 28th or 29th day of February OSH Central Rules r.73(5).

TRAP

The Code does not use the words "single" or "annual" for the return. OSH Code s.33(d) leaves the manner and periods to the Government. The annual return comes from the Rules OSH Central Rules r.74.

4. Hours, overtime and leave

OSH Code s.25(1) **Daily hours**

No worker is required or allowed to work in an establishment for more than **8 hours** in a day OSH Code s.25(1)(a). Intervals and spread-over are left to notification by the appropriate Government OSH Code s.25(1)(b).

Factories Act 1948: 9 hours a day OLD Factories Act 1948 s.54. Spread-over 10.5 hours OLD Factories Act 1948 s.56, which the Chief Inspector may raise to 12 hours CHANGED

OSH Code s.26(1) **Six-day week**

No worker is allowed to work for more than **6 days** in any one week.

OSH Central Rules r.64(1) Weekly hours (Rules)

No worker is required or allowed to work for more than **48 hours** in a week. The Code text has **no weekly hour figure**.

OLD Factories Act 1948 s.51 48 hours for an adult worker. The number is the same. The source is now the Rules, not the Code CHANGED

TRAP

Many books say the Code gives "8 hours a day, 48 hours a week". The Code fixes **8 hours a day** only OSH Code s.25(1)(a). The 48-hour week is in the Rules OSH Central Rules r.64(1).

OSH Code s.27 Overtime

Wages at **twice** the rate of wages for overtime work. The overtime period is calculated on a daily or weekly basis, whichever is more favourable to the worker.

Overtime work is subject to the **consent** of the worker. The appropriate Government may prescribe the total hours of overtime.

Rules. A worker other than a daily wager who works more than 48 hours in a week is paid twice the rate of wages OSH Central Rules r.69(1)(b). No worker is allowed to work overtime exceeding **144 hours** in any quarter of a year OSH Central Rules r.69.

OLD Factories Act 1948 s.59 twice the rate SAME

OSH Code s.32(1) Leave with wages

Eligibility. A worker who has worked **180 days or more** in a calendar year OSH Code s.32(1)(i).

Counted days. Layoff, maternity leave and annual leave availed in the year count toward the 180 days. The worker does not earn leave for the days so counted OSH Code s.32(1)(iii).

Carry-forward. At most **30 days** are carried forward to a succeeding year OSH Code s.32(1)(vii)(a). Leave refused after the worker applied can be carried forward without limit.

Encashment. On the worker's demand, leave is encashed at the end of the calendar year OSH Code s.32(1)(viii). Clause (ix) lets the worker encash leave above 30 days.

OLD Factories Act 1948 s.79 240 days or more to qualify. Layoff days counted and earned no leave, as now CHANGED

Worker	Leave earned
Any other worker OSH Code s.32(1)(ii)	1 day for every **20** days of work
Adolescent worker	1 day for every **15** days
Worker below ground in a mine	1 day for every **15** days

Worked example: layoff and leave

A worker works 220 days in a year and is laid off for 25 days. The layoff days count toward the 180 days, so 220 + 25 = 245 and the worker qualifies. Leave is earned only on the 220 days worked: 220 / 20 = **11 days**.

Days counted for eligibility: 220 + 25 = 245

Days that earn leave: 220, so 11 days

Minimum to qualify: 180

5. Women, health check-up and age

OSH Code s.43 **Women and night work**

Women are entitled to be employed in all establishments for all types of work under the Code. They may also be employed, with their consent, before **6 a.m.** and beyond **7 p.m.**, subject to prescribed conditions on safety, holidays and working hours.

Rules. Night or early-late work needs the woman's **written consent**, adequate transport, a well-lit workplace with closed-circuit television on the way to toilets, washrooms and drinking facilities, and compliance with the Sexual Harassment of Women at Workplace Act 2013 OSH Central Rules r.83.

Factories Act 1948: women not employed between 7 p.m. and 6 a.m., relaxable between 10 p.m. and 5 a.m. A factory-only bar became a consent rule for all establishments CHANGED

OSH Code s.44 **Dangerous operations**

Where the appropriate Government considers employment of women dangerous to their health and safety, it may require the employer to provide adequate safeguards first.

Rules. The Central Government may declare by notification the class of establishments and the standard for safeguarding women in hazardous processes OSH Central Rules r.84.

OSH Code s.6(1)(c) **Annual health check-up**

The employer provides an annual health examination or test, free of cost, to the employees of the age or class the appropriate Government prescribes.

Rules. Every employer of dock work, building or other construction work arranges a free medical examination for an employee who has completed **40 years** of age OSH Central Rules r.5(1). The rule covers only those two kinds of work.

OSH Code ss.2(1)(b), 2(1)(a) **Adult and adolescent**

An **adult** is a person who has completed **18** years of age. An **adolescent** has the meaning in CAL Act 1986 s.2(i). The Code itself states no age range.

Factories Act 1948: an adolescent is a person who has completed 15 years but not 18 CHANGED

OSH Code s.42(2)(c) **Fitness certificate**

The medical officer appointed under OSH Code s.42(1) examines and certifies adolescents for fitness for employment in a factory, plantation, motor transport undertaking or other prescribed establishment. The Code uses "medical officer", not "certifying surgeon".

Factories Act 1948: the certifying surgeon gave the certificate CHANGED

Proof of age OSH Code s.117(2)

1. **Aadhaar card**
   The medical authority prescribed by the Central Government takes the Aadhaar card first.
2. **School certificate**
   Then the school date-of-birth or matriculation certificate.
3. **Birth certificate**
   Then a birth certificate from a corporation, municipal authority or Panchayat.
4. **Ossification test**
   Only if none of these exists.

6. Welfare, safety and hazardous work

The Code lists welfare facilities "as may be prescribed by the Central Government" OSH Code s.24(1) NEEDS RULES. The Rules fill in the detail.

Facility	Code	Rules
Canteen	Where **100 or more** workers, including contract labourers, are ordinarily employed OSH Code s.24(1)(v)	Every factory, mine, building or other construction work, beedi and cigar premises, motor transport undertaking, dock work and plantation with 100 or more workers provides one OSH Central Rules r.53(i)

Facility	Code	Rules
First aid	Adequate first-aid boxes or cupboards, readily accessible during all working hours OSH Code s.24(1)(vii)	
Water and latrines	Potable drinking water. Latrine and urinal accommodation, separate for male, female and transgender employees OSH Code ss.23(2)(v), 23(2)(viii)	
Crèche	The Central Government may make rules for a crèche for children under **6 years** of the employees where **more than 50** workers are ordinarily employed. The Code says "employees", not "women" OSH Code s.24(3)	More than 50 workers: a crèche for children under 6 years of employees OSH Central Rules r.58(i)
Welfare officer	The Central Government may prescribe one in every factory, mine or plantation where **250 or more** workers are ordinarily employed OSH Code s.24(2)(iv)	Between 250 and up to 500 workers: at least one, and one more for every additional 500 or fraction over 500 OSH Central Rules r.57(i)(a)
Ambulance room	The Central Government may prescribe one in every factory, mine, building or other construction work where **more than 500** workers are ordinarily employed OSH Code s.24(2)(i)	More than 500 workers: a suitable ambulance room or dispensary OSH Central Rules r.55(i)

Look-alike: the Code against the old Factories Act

Facility	OSH Code today	Factories Act 1948 (repealed)
Canteen	**100 or more** workers	**More than 250** workers OLD Factories Act 1948 s.46(1)
Crèche	**More than 50** workers, children under 6	**More than 30 women** workers OLD Factories Act 1948 s.48(1)
Welfare officer	**250 or more** workers	**500 or more** workers OLD Factories Act 1948 s.49(1)
Ambulance room	**More than 500** workers	**More than 500** workers OLD Factories Act 1948 s.45(4)

Facility	OSH Code today	Factories Act 1948 (repealed)
First aid	Adequate boxes or cupboards	One box for every **150** workers OLD Factories Act 1948 s.45(1)
Safety officer	500 or more factory; 250 or more hazardous-process factory; 250 or more construction; 100 or more mine	**1,000 or more** workers OLD Factories Act 1948 s.40B(1)(i)

TRAP

Watch "more than" against "or more". The Code crèche is "more than 50" OSH Code s.24(3), but the plantation crèche is "50 or more" OSH Code s.92(1)(b). The old canteen rule was "more than 250", not "250 or more".

Safety Committee and safety officers OSH Code s.22

Safety Committee

The appropriate Government may, by general or special order, require an establishment or class to set one up, with employer and worker representatives. Worker representatives are not fewer than employer representatives OSH Code s.22(1).

The section gives no worker number and no hazardous-process test.

Rules: every establishment with **500 or more** workers OSH Central Rules r.14(1). The Central Government may fix a different threshold for classes by order OSH Central Rules r.14(2). No hazardous condition.

Safety officers

The employer appoints them in OSH Code s.22(2): a factory with **500 or more** workers; a factory with a hazardous process and **250 or more**; a building or other construction work with **250 or more**; a mine with **100 or more**.

"Hazardous" is a test here, not for the Safety Committee.

Before the Code, the Factories Act 1948 required a Safety Committee in a factory where hazardous substances are used or handled OLD Factories Act 1948 s.41G CHANGED

Boards, danger, site appraisal, diseases

Point	Rule
National OSH Advisory Board OSH Code s.16	The Central Government constitutes it by notification. The Secretary, Ministry of Labour and Employment, is Chairperson ex officio.

Point	Rule
Imminent danger OSH Code s.89	Workers in a factory engaged in a hazardous process who reasonably apprehend imminent danger to life or health from an accident may tell the occupier, agent, manager or person in charge. They tell the Inspector-cum-Facilitator at the same time. If the occupier is not satisfied, the Inspector-cum-Facilitator's decision is final OSH Code s.89(3).
Site appraisal OSH Code s.83	The appropriate Government may constitute one or more site appraisal committees "consisting of a chairman and other members". They consider the initial location or expansion of a factory involving a hazardous process. The Code does not say who the chairman is. Under the Factories Act 1948 the State Chief Inspector headed it OLD Factories Act 1948 s.41A CHANGED
Notifiable diseases OSH Code s.12(1)	A worker who contracts a disease in the OSH Code Third Schedule: the employer sends notice. The Schedule lists **29** diseases, from lead poisoning to toxic nephritis. A medical practitioner must report such a disease OSH Code s.12(2). Failure to report carries a penalty up to **Rs 10,000** OSH Code s.12(3). The old Third Schedule also listed 29 SAME
Hazardous processes OSH Code First Schedule	The First Schedule lists **40** industries involving hazardous processes.

7. Contract labour (Chapter XI, Part I)

OSH Code s.45(1)(i) **Where Part I applies**

Every establishment with **50 or more** contract labour, now or on any day of the preceding 12 months. Part I also covers every manpower supply contractor with 50 or more contract labour.

OLD CLRA 1970 20 workmen CHANGED

OSH Code s.45(2) **Intermittent work**

The Part does not apply to an establishment where work only of an intermittent or casual nature is performed. Work is not intermittent if done for more than **120 days** in the preceding 12 months, or, if seasonal, for more than **60 days** in a year.

OSH Code s.2(1)(p) **Core activity**

Any activity for which the establishment is set up, including any activity essential or necessary to it.

These are not treated as essential or necessary if the establishment is not set up for them: sanitation works, watch and ward including security, canteen and catering, loading and unloading, support-service hospitals and guest houses, courier services, civil and constructional works, gardening, housekeeping and laundry, transport including ambulance services, and any activity of intermittent nature.

Is the work a core activity of the establishment? OSH Code s.57(1)

Yes

Contract labour is prohibited. Three exceptions: the activity is ordinarily done through a contractor given the normal functioning of the establishment; it does not need full-time workers for the major part of the working hours or for longer periods; or there is a sudden increase in the volume of work that must be done in a specified time.

No

The ban does not apply. Sanitation, security, canteen and the other activities named in OSH Code s.2(1)(p) fall here when the establishment is not set up for them.

TRAP

Sanitation, canteen and security are not exceptions to the ban. They are part of the definition of "core activity", so they are outside it from the start. The three exceptions in OSH Code s.57(1) are separate tests.

OSH Code ss.53, 55 **Welfare and wages**

Welfare. The principal employer provides the welfare facilities under OSH Code s.23 and OSH Code s.24 to the contract labour employed in the establishment OSH Code s.53. This duty is direct, not "if the contractor fails".

Wages. The contractor pays wages to each contract labour OSH Code s.55. If the contractor fails to pay in the prescribed period, or short pays, the principal employer pays the wages in full or the unpaid balance. The principal employer recovers it from the contractor by deduction or as a debt OSH Code s.55(3).

In SAIL v National Union Water Front Workers (2001), (2001) 7 SCC 1, the Supreme Court held that contract workers are not automatically absorbed by the principal employer on abolition of contract labour.

The licence and common licence rules are under "Registration, licence and returns" above.

8. Inter-State migrant workers (Chapter XI, Part II)

OSH Code s.2(1)(zf) Who is a migrant worker

A person employed in an establishment who draws wages not exceeding **Rs 18,000** a month, or a higher amount the Central Government notifies.

It also covers a person who came on his own from one State and got work in an establishment of another State, or later changed establishment within that State, if there is an agreement or other arrangement for the employment.

OSH Code s.59 Where Part II applies

Every establishment with **10 or more** inter-State migrant workers, now or on any day of the preceding 12 months.

OSH Code s.60 Facilities

The contractor or employer ensures suitable conditions of work. A fatal accident or serious bodily injury is reported to the authorities of both States and to the next of kin. The worker gets every benefit a worker of the establishment gets, including ESI Act 1948 and EPF Act 1952 benefits and the medical check-up under OSH Code s.6(1)(c).

OSH Code s.61 Journey allowance

The employer pays every inter-State migrant worker, in a year, a lump sum equal to the fare for a to-and-fro journey to his native place.

Rules. A lump sum for travel not less than II Class sleeper or bus, once in twelve months, if the worker worked not less than **180 days** in the establishment in the preceding twelve months OSH Central Rules r.102.

OSH Code ss.62, 63 Ration, cess and helpline

The appropriate Government makes schemes so that a migrant worker can use public distribution system benefits in his native State or the destination State. It also makes schemes for portability of building and other construction cess fund benefits in the destination State, for a worker in building or other construction work OSH Code s.62.

The appropriate Government **may** provide a toll free helpline OSH Code s.63. **Rules:** the Director General Labour Welfare Organisation **shall** provide a toll-free help-line number OSH Central Rules r.103.

OSH Code s.21(2) **Database**

The Central and State Governments keep a database or record of inter-State migrant workers on a portal. A worker may register himself on self-declaration and Aadhaar.

Rules. The employer furnishes details and statistics of inter-State migrant workers OSH Central Rules r.13.

OSH Code ss.59 to 65 **No displacement allowance**

The Code has no displacement allowance. The migrant worker provisions in OSH Code ss.59 to 65 pay none.

OLD ISMW Act 1979 displacement allowance of 50% of monthly wages or Rs 75, whichever is higher REMOVED. The contractor also had duties of equal pay for the same or similar work, suitable residential accommodation, protective clothing, prescribed medical facilities and a journey allowance. The Act had no old-age benefit.

TRAP

Contract labour starts at **50** workers OSH Code s.45(1)(i). Inter-State migrant workers start at **10** OSH Code s.59. The migrant wage limit is **Rs 18,000** a month OSH Code s.2(1)(zf). Do not swap the numbers.

9. Mines and plantations (bridge)

Mines

OSH Code s.41 **Entry to a mine**

A Government servant authorised by the Chief Inspector-cum-Facilitator or an Inspector-cum-Facilitator may enter a mine to survey, level or measure it or its output after giving not less than **3 days'** notice to the manager. In an emergency, no notice is needed.

OLD Mines Act 1952 a special officer gave the manager at least 3 days' notice SAME

OSH Code s.25(1) **Mine hours**

Below-ground hours are left to Central Government notification OSH Code s.25(1). The Code has no mine size threshold OSH Code s.2(1)(v).

OLD Mines Act 1952 48 hours a week, 9 a day above ground and 8 a day below ground. The Act applied to all mines regardless of size CHANGED

OSH Code s.43 **Women below ground**

The Code allows women in all types of work. **Rules:** in a below-ground mine, not fewer than **three** women on duty at any place **OSH Central Rules r.83(g)**.

OLD Mines Act 1952 barred women below ground. A relaxation by notification allowed it, with written consent and safeguards CHANGED

A mine with **100 or more** workers needs a safety officer **OSH Code s.22(2)**. Mine employees are medically examined before employment and at intervals **OSH Code s.24(1)(vi)**.

Plantations

OSH Code s.92(1)(a) **Housing**

The State Government **may** prescribe that every plantation employer provides necessary housing accommodation, including drinking water, kitchen and toilet, for every worker and family. It is a Code facility only as the State rules prescribe.

OLD Plantations Act 1951 s.15 housing was a statutory provision CHANGED

OSH Code ss.92(1)(b) to (e) **Other plantation facilities**

The State Government may prescribe crèches where **50 or more** workers are employed (or were employed on any day of the preceding 12 months), including workers of a contractor. It may prescribe educational facilities where children aged 6 to 12 exceed 25, health facilities for worker and family or ESI coverage, and recreational facilities.

OLD Plantations Act 1951 s.11(1) canteen at 150 or more workers. OLD Plantations Act 1951 s.12(1) crèche at 50 or more women; the amended section has a second limb for 20 or more children. OLD Plantations Act 1951 s.18(1) welfare officer at 300 or more CHANGED

Welfare officer: 250, 300, 500

Limit	Belongs to
250 or more	OSH Code, factory, mine or plantation **OSH Code s.24(2)(iv)**
300 or more	Plantations Labour Act 1951 (repealed) OLD Plantations Act 1951 s.18(1)
500 or more	Factories Act 1948 (repealed) OLD Factories Act 1948 s.49(1)

The other repealed Acts (Working Journalists, Motor Transport Workers, Beedi and Cigar Workers, Sales Promotion Employees, Cine-Workers and Cinema Theatre Workers, and Dock Workers) are gone by **OSH Code s.143(1)**. The Code keeps a 10-worker establishment rule for motor transport and newspaper establishments **OSH Code s.2(1)(v)**.

10. Penalties and compounding

OSH Code s.94 **General penalty**

A penalty of **not less than Rs 2 lakh and up to Rs 3 lakh** on the employer or principal employer. A further penalty up to **Rs 2,000** for each day the contravention continues after conviction. It is a penalty, not imprisonment.

OLD Factories Act 1948 s.92 imprisonment up to 2 years or a fine up to Rs 1 lakh CHANGED

OSH Code s.103(1)(a) **Death through a contravention**

Where non-compliance with duties causes an accident or dangerous occurrence resulting in death: imprisonment up to **2 years**, or a fine of **not less than Rs 5 lakh**, or both.

The court may direct that a portion of the fine, **not less than 50%**, be given as compensation to the victim, or to the legal heirs if the victim died OSH Code s.103(1).

TRAP

Rs 5 lakh is a **minimum**, not a maximum. The law says the fine "shall not be less than" Rs 5 lakh OSH Code s.103(1)(a).

OSH Code s.114(1) **Compounding**

A listed penalty may be compounded for **50%** of the maximum penalty. A listed offence may be compounded for **75%** of the maximum fine.

No compounding for a second or later penalty or offence within **3 years** of one earlier compounded or convicted. The compounding sum goes to the social security fund for unorganised workers OSH Code s.115.

Five numbers around penalties

Figure	Belongs to
Rs 2 lakh to Rs 3 lakh	General penalty OSH Code s.94
Rs 5 lakh (minimum fine)	Death OSH Code s.103(1)(a)
50%	Compounding a penalty OSH Code s.114(1). Also the floor of the fine share given to the victim OSH Code s.103(1)
75%	Compounding an offence OSH Code s.114(1)

What changed

Point	Before	Now	
Factory size	10 with power, 20 without OLD Factories Act 1948 s.2(m)	**20** with power, **40** without OSH Code s.2(1)(w)	CHANGED
Contract labour	20 workmen OLD CLRA 1970	**50** or more OSH Code s.45(1)(i)	CHANGED
Daily hours	9 hours OLD Factories Act 1948 s.54	**8** hours OSH Code s.25(1)(a)	CHANGED
Weekly hours	48 hours OLD Factories Act 1948 s.51	48 hours, set by the Rules OSH Central Rules r.64(1); the Code has no weekly figure	CHANGED
Spread-over	10.5 hours, up to 12 OLD Factories Act 1948 s.56	Left to notification OSH Code s.25(1)(b)	CHANGED
Overtime	Twice the rate OLD Factories Act 1948 s.59	Twice the rate OSH Code s.27	SAME
Leave to qualify	240 days OLD Factories Act 1948 s.79	**180** days OSH Code s.32(1)(i)	CHANGED
Women at night	Barred 7 p.m. to 6 a.m. in factories	With consent, all establishments OSH Code s.43	CHANGED
Adolescent	15 years but not 18	Taken from CAL Act 1986 s.2(i); no age range in the Code OSH Code s.2(1)(a)	CHANGED
Fitness certificate	Certifying surgeon	Medical officer OSH Code s.42(2)(c)	CHANGED
Canteen	More than 250 OLD Factories Act 1948 s.46(1)	**100 or more** OSH Code s.24(1)(v)	CHANGED
Crèche	More than 30 women OLD Factories Act 1948 s.48(1)	More than 50 workers OSH Code s.24(3)	CHANGED

Point	Before	Now	
Welfare officer	500 or more OLD Factories Act 1948 s.49(1)	**250 or more** OSH Code s.24(2)(iv)	CHANGED
Ambulance room	More than 500 OLD Factories Act 1948 s.45(4)	More than 500 OSH Code s.24(2)(i)	SAME
Safety officer	1,000 or more OLD Factories Act 1948 s.40B(1)(i)	500, 250, 250, 100 by type of workplace OSH Code s.22(2)	CHANGED
Safety Committee	Factory where hazardous substances are used or handled OLD Factories Act 1948 s.41G	By Government order OSH Code s.22(1); 500 or more in the Rules OSH Central Rules r.14(1)	CHANGED
Site appraisal chair	State Chief Inspector OLD Factories Act 1948 s.41A	The Code names no chairman OSH Code s.83	CHANGED
Notifiable diseases	29 in the Third Schedule	29 in the OSH Code Third Schedule	SAME
Contract labour ban	Government considered factors such as whether the work is incidental or necessary, of perennial nature, or ordinarily done through regular workmen OLD CLRA 1970	Core activities barred, with 3 exceptions OSH Code s.57(1). Intermittent activity is outside "core activity" OSH Code s.45(2)	CHANGED
Out-worker	Excluded from "workman" OLD CLRA 1970	No out-worker exclusion in "worker" OSH Code s.2(1)(zzl)	REMOVED
Displacement allowance	50% of monthly wages or Rs 75 OLD ISMW Act 1979	None in the Code	REMOVED
Mines hours	48 a week, 9 above ground, 8 below OLD Mines Act 1952	Below-ground hours by notification OSH Code s.25(1)	CHANGED
Mines entry notice	3 days OLD Mines Act 1952	3 days OSH Code s.41	SAME
Plantation housing	A statutory provision OLD Plantations Act 1951 s.15	The State may prescribe it OSH Code s.92(1)(a)	CHANGED

Point	Before	Now	
General penalty	Up to 2 years or up to Rs 1 lakh OLD Factories Act 1948 s.92	Rs 2 lakh to Rs 3 lakh, a penalty and not imprisonment OSH Code s.94	CHANGED

Numbers on one scale

Headcounts: workers

- **10** or more: establishment OSH Code s.2(1)(v); inter-State migrant workers OSH Code s.59
- **20** or more: factory with power OSH Code s.2(1)(w)
- **40** or more: factory without power OSH Code s.2(1)(w)
- **50** or more: contract labour OSH Code s.45(1)(i); plantation crèche OSH Code s.92(1)(b). More than 50: crèche OSH Code s.24(3)
- **100** or more: canteen OSH Code s.24(1)(v); safety officer in a mine OSH Code s.22(2)
- **250** or more: welfare officer OSH Code s.24(2)(iv); safety officer in a hazardous-process factory and in construction OSH Code s.22(2)
- **500** or more: safety officer in a factory OSH Code s.22(2); Safety Committee OSH Central Rules r.14(1). More than 500: ambulance room OSH Code s.24(2)(i)

Time limits: days

- **3** days: notice before entering a mine OSH Code s.41
- **6** days: longest work in a week OSH Code s.26(1)
- **30** days: most leave carried forward OSH Code s.32(1)(vii)(a)
- **60** days: to apply for registration OSH Code s.3(1); seasonal work is not intermittent beyond 60 days a year OSH Code s.45(2)
- **120** days: work beyond this in 12 months is not intermittent OSH Code s.45(2)
- **180** days: worked to earn leave OSH Code s.32(1)(i); worked for the journey allowance OSH Central Rules r.102

Time limits: hours

- **8** hours a day OSH Code s.25(1)(a)
- **48** hours a week OSH Central Rules r.64(1)
- **144** hours of overtime in a quarter OSH Central Rules r.69

Time limits: months

- **3** months: appointment letter for existing employees OSH Code s.6(1)(f)
- **12** months: look-back for thresholds OSH Code s.45(1)(i), OSH Code s.59; one journey allowance in twelve months OSH Central Rules r.102

Time limits: years

- **3** years: no compounding of a repeat within this time OSH Code s.114
- **5** years: contractor licence OSH Code s.48(3)

Ages in years

- **6** years: children under this age for a crèche OSH Code s.24(3)
- **18** years: an adult has completed 18 OSH Code s.2(1)(b)
- **40** years: free medical examination in dock and construction work OSH Central Rules r.5(1)

Shares

- **50%** compounding a penalty; least share of a fine given to the victim OSH Code s.114(1), OSH Code s.103(1)
- **75%** compounding an offence OSH Code s.114(1)

Money: rupees

- **2,000** a day: further penalty for a continuing contravention OSH Code s.94
- **10,000** penalty for failing to report a notifiable disease OSH Code s.12(3)
- **18,000** a month: wage limit for a migrant worker, and for a supervisor under "worker" OSH Code s.2(1)(zf), OSH Code s.2(1)(zzl)
- **2 lakh** least general penalty; the most is 3 lakh OSH Code s.94
- **5 lakh** least fine for a death OSH Code s.103(1)(a)

Quick revision

Sections / chapters / Acts repealed	143 / 14 / 13 OSH Code s.143(1)
In force	21 Nov 2025, S.O. 5321(E)
Rules	G.S.R. 345(E), 8 May 2026
Establishment	10 or more workers OSH Code s.2(1)(v)
Factory	20 with power, 40 without (old: 10 and 20)
Plantation	5 hectares; tea, coffee, rubber, cinchona, cardamom
Supervisor limit in "worker"	Rs 18,000 a month OSH Code s.2(1)(zzl)
Registration	Electronic, within 60 days OSH Code s.3(1)
Contractor licence	5 years OSH Code s.48(3)
Annual return	Rules, FORM-XVII, last day of February OSH Central Rules r.74
Daily / weekly hours	8 OSH Code s.25(1)(a) / 48 in the Rules OSH Central Rules r.64(1)
Days in a week	6 OSH Code s.26(1)
Overtime	2 times; with consent; 144 hours a quarter (Rules)
Leave	180 days (old 240); 1 per 20; adolescent and below ground 1 per 15; carry 30 days
Women at night	Consent; before 6 a.m., beyond 7 p.m. OSH Code s.43
Health check-up (Rules)	40 years, dock and construction
Proof of age	Aadhaar, school certificate, birth certificate, then ossification
Canteen / crèche	100 or more / more than 50
Welfare officer / ambulance room	250 or more / more than 500
Safety Committee	Code: no number; Rules: 500 or more
Safety officers	500 factory / 250 hazardous factory / 250 construction / 100 mine

Advisory Board chair	Secretary, Ministry of Labour and Employment OSH Code s.16
Notifiable diseases / hazardous industries	Third Schedule, 29 / First Schedule, 40
Contract labour	50 or more (old 20); core activities barred OSH Code s.57(1)
Intermittent test	More than 120 days; seasonal more than 60
Welfare / unpaid wages	Principal employer pays; recovers from the contractor OSH Code s.53, OSH Code s.55(3)
Migrant workers	10 or more; Rs 18,000 a month; journey allowance OSH Code s.61
Displacement allowance	Dropped by the Code
Helpline	Code "may", Rules "shall"
Mines notice	3 days OSH Code s.41
Plantation housing	As the State prescribes OSH Code s.92(1)(a)
General penalty	Rs 2 lakh to Rs 3 lakh OSH Code s.94
Death	2 years, or fine not less than Rs 5 lakh
Compounding	50% of the penalty; 75% of the fine; not for a repeat within 3 years

Test yourself

1. From what date is the OSH Code in force, by which notification, and how many Acts did it repeal?
2. What is the worker threshold for a factory under the Code, and what was it under the old Act?
3. Where is the 48-hour week fixed? What does the Code itself fix?
4. A worker works 220 days and is laid off for 25 days in a year. Does the worker qualify for leave with wages, and for how many days of leave?
5. What number sets up a Safety Committee, and where does it come from? Which workplaces need a safety officer at 250?
6. For which workplace size is a canteen required, and for a crèche? Which one says "more than"?
7. When is contract labour barred, and what are the three exceptions?
8. What is the punishment for a death caused by a contravention? Is Rs 5 lakh a maximum?
9. At what share of the maximum can a penalty be compounded, and at what share an offence?

Answers

1. 21 November 2025, by S.O. 5321(E). It repealed 13 Acts OSH Code s.143(1).
2. 20 or more workers with power, 40 or more without OSH Code s.2(1)(w). The old Act said 10 and 20.
3. In the Rules OSH Central Rules r.64(1). The Code fixes only 8 hours a day OSH Code s.25(1)(a).
4. Yes. The 25 layoff days count, so 220 + 25 = 245, which is above 180. Leave is earned on the 220 days worked: 220 / 20 = 11 days OSH Code s.32(1).
5. The Code gives no number OSH Code s.22(1). The Rules say 500 or more OSH Central Rules r.14(1). A safety officer at 250 is needed in a hazardous-process factory and in a building or other construction work OSH Code s.22(2).
6. A canteen at 100 or more workers OSH Code s.24(1)(v). A crèche at more than 50 workers OSH Code s.24(3). The crèche says "more than".
7. Contract labour in core activities is barred OSH Code s.57(1). Exceptions: the activity is ordinarily done through a contractor; it does not need full-time workers for the major part of the working hours or for longer periods; or there is a sudden increase in the volume of work.
8. Imprisonment up to 2 years, or a fine of not less than Rs 5 lakh, or both OSH Code s.103(1)(a). No: Rs 5 lakh is a minimum.
9. 50% of the maximum penalty, and 75% of the maximum fine for an offence OSH Code s.114(1).